

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1749 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Reading Clerk

Amendment submitted by: Derrick Hildebrant

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 1749

By: Green of the Senate

and

Turner of the House

FLOOR SUBSTITUTE

An Act relating to mobile food preparation vehicles; amending Section 1, Chapter 106, O.S.L. 2024, as amended by Section 1, Chapter 342, O.S.L. 2025 (74 O.S. Supp. 2025, Section 325.20), which relates to fire code compliance; modifying mandate for automatic fire extinguishing system in food trucks; modifying entity from which to obtain certain permit; requiring promulgation of rules; removing expiration date; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 106, O.S.L. 2024, as amended by Section 1, Chapter 342, O.S.L. 2025 (74 O.S. Supp. 2025, Section 325.20), is amended to read as follows:

Section 325.20. A. All mobile food preparation vehicles operating within this state ~~prior to July 1, 2024,~~ that are capable of producing smoke or grease-laden vapors shall be in compliance with the most current adopted fire code. ~~With the exception~~ In lieu

1 of an automatic fire extinguishing system, ~~such requirement~~ an
2 equivalent alternative shall be permitted, whereby such system shall
3 be optional if the mobile food preparation vehicle is equipped with
4 at least two portable fire extinguishers meeting National Fire
5 Protection Association (NFPA) 10: Standard for Portable Fire
6 Extinguishers and all employees receive documented annual fire
7 safety training approved by the State Fire Marshal. Such
8 requirements shall apply to vehicles including, but not limited to,
9 vehicles utilizing electric energy, liquefied petroleum gas,
10 compressed natural gas, or a combination thereof for cooking,
11 provided that portable fire extinguishers are installed and
12 maintained in accordance with the most current version of NFPA 10:
13 Standard for Portable Fire Extinguishers. A six-liter Class K-
14 rated, portable fire extinguisher is required for all cooking
15 equipment involving solid fuels, vegetable or animal oils and fats,
16 or a combination thereof. All portable fire extinguishers shall be
17 in clear view and immediately available for use.

18 B. All mobile food preparation vehicles utilizing, handling, or
19 transporting liquefied petroleum gas or any liquefied petroleum gas
20 system, equipment, container, apparatus, or appliance shall receive
21 and maintain a permit from, ~~and be inspected annually by, the~~
22 ~~Oklahoma Liquefied Petroleum Gas Administration or its employees, in~~
23 ~~conjunction with~~ the Oklahoma Liquefied Petroleum Gas Board. The
24 Board shall promulgate rules related to such permits, including

1 inspection requirements. The State Fire Marshal ~~issuing~~ shall issue
2 an annual operation permit decal to mobile food preparation
3 vehicles.

4 ~~C. The provisions in subsection A of this section shall expire~~
5 ~~on January 1, 2026, and all mobile food preparation vehicles shall~~
6 ~~comply with the most current adopted fire codes set forth by this~~
7 ~~state.~~

8 ~~D.~~ Mobile food preparation vehicles shall be under the
9 jurisdiction of the State Fire Marshal for fire and life safety code
10 compliance and shall be inspected annually by the State Fire Marshal
11 to ensure compliance with the latest version of the state-adopted
12 minimum codes for fire and life safety as adopted by the Oklahoma
13 Uniform Building Code Commission. The State Fire Marshal shall
14 coordinate, at minimum, annual inspections conducted:

15 1. Within each of the four quadrants of this state; and

16 2. Twice within each county with a population exceeding four
17 hundred thousand (400,000) according to the latest Federal Decennial
18 Census.

19 ~~E.~~ D. Upon approval, the State Fire Marshal shall issue an
20 operational permit decal indicating that the vehicle meets the
21 minimum fire and life safety code requirements adopted at the time
22 of inspection.

23 ~~F.~~ E. Nothing in this section shall prevent:
24

1 1. The State Fire Marshal from enforcing the minimum fire code
2 requirements as allowed by law and revoking the operations of a
3 mobile food preparation vehicle for cause when such vehicle is
4 determined to be inherently dangerous to the health, safety, or
5 welfare of persons within this state;

6 2. A political subdivision from enforcing the event permits,
7 operational fees, land use regulations, zoning, or other ordinances
8 in relation to the operation of a mobile food preparation vehicle
9 within the boundaries of the political subdivision; or

10 3. The State Department of Health from licensing and regulating
11 mobile food preparation vehicles as provided by the provisions of
12 Title 63 of the Oklahoma Statutes and rules promulgated by the State
13 Commissioner of Health.

14 ~~G.~~ F. The State Fire Marshal may promulgate rules necessary to
15 implement the provisions of this section. Such rules shall have
16 uniform force and effect throughout this state and no political
17 subdivision or other agency shall enact or enforce any fire or life
18 safety code-related ordinances, rules, or other requirements for
19 mobile food preparation vehicles, except in a county with a
20 population exceeding four hundred thousand (400,000) according to
21 the latest Federal Decennial Census.

22 SECTION 2. This act shall become effective November 1, 2026.
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24 60-2-17504 TJ 04/20/26

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